

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                          |                                            |                                                                                                                                                                                                            |
|---------------------------------------------------|----------------------------------------------------------|--------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Filip Woroniecki                 | Team:<br>Squad #07                                       | CCRB Case #:<br>201707948                  | <input type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Monday, 09/25/2017 11:30 PM   | Location of Incident:<br>7th Avenue and West 46th Street | 18 Mo. SOL<br>3/25/2019                    | Precinct:<br>18                                                                                                                                                                                            |
| Date/Time CV Reported<br>Tue, 09/26/2017 12:53 AM | CV Reported At:<br>CCRB                                  | How CV Reported:<br>Call Processing System | Date/Time Received at CCRB<br>Tue, 09/26/2017 12:53 AM                                                                                                                                                     |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s) | Shield | TaxID  | Command |
|--------------------|--------|--------|---------|
| 1. POM Mark Kwon   | 20325  | 955031 | PBMS    |

| Witness Officer(s)       | Shield No | Tax No | Cmd Name |
|--------------------------|-----------|--------|----------|
| 1. POM Michael Sternberg | 04667     | 955535 | PBMS     |

| Officer(s)        | Allegation                                                                   | Investigator Recommendation |
|-------------------|------------------------------------------------------------------------------|-----------------------------|
| A . POM Mark Kwon | Discourtesy: Police Officer Mark Kwon acted discourteously toward § 87(2)(b) | A . Unsubstantiated         |
| B . POM Mark Kwon | Discourtesy: Police Officer Mark Kwon spoke discourteously to § 87(2)(b)     | B . Unsubstantiated         |

### Case Summary

On September 26, 2017, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System.

On September 25, 2017, at about 11:30 p.m., § 87(2)(b) was pulled over at the intersection of West 46<sup>th</sup> Street and 7<sup>th</sup> Avenue in Manhattan, by PO Michael Sternberg and PO Mark Kwon of Patrol Borough Manhattan South. During the vehicle stop, PO Kwon allegedly tossed § 87(2)(b)'s driver's license through the open window of his vehicle (**Allegation A: Discourtesy, unsubstantiated**) and instructed § 87(2)(b) to "Get the fuck out of here" (**Allegation B: Discourtesy, unsubstantiated**). As a result of this incident, § 87(2)(b) received a summons for disobeying a sign.

Attempts were made to obtain video footage of the incident from TARU; however, the video was past recovery time (Board Review 01).

### Findings and Recommendations

**Allegation A – Discourtesy: Police Officer Mark Kwon acted discourteously toward § 87(2)(b)**

**Allegation B – Discourtesy: Police Officer Mark Kwon spoke discourteously to § 87(2)(b)**

§ 87(2)(b) stated that as he made a left turn onto 7<sup>th</sup> Avenue, he observed PO Kwon and PO Sternberg standing in the street. PO Kwon gestured for § 87(2)(b) to park his car on the left side of West 46<sup>th</sup> Street and repeatedly told him to "pull over." § 87(2)(b) explained that he could not immediately pull over as PO Kwon was standing in his way. During the encounter, § 87(2)(b) explained that if he listened to PO Kwon and pulled over, he surely would have hit him with his vehicle. PO Kwon then requested § 87(2)(b)'s license and § 87(2)(b) handed it to him. While in the vicinity of § 87(2)(b)'s vehicle, PO Kwon was approached by a food vendor stationed near the incident location. § 87(2)(b) believed that the food vendor was trying to calm PO Kwon down and heard PO Kwon say, "Why are you defending him?" PO Kwon then approached the driver's side of § 87(2)(b)'s vehicle and tossed his driver's license inside through an open window. The driver's license fell either on top of the driver's seat or the vehicle's floor. PO Kwon never attempted to hand the license to § 87(2)(b) and § 87(2)(b) did not refuse to take it from PO Kwon. After tossing the license inside of § 87(2)(b)'s vehicle, PO Kwon stated, "Get the fuck out of here" and walked away with PO Sternberg (Board Review 02).

PO Kwon stated that once § 87(2)(b) received the summons from PO Sternberg, he pulled out of the parking spot and while driving away, he nearly hit a food vendor who was crossing the street. Seeing this, PO Kwon yelled out, "stop right there" and approached § 87(2)(b)'s vehicle a second time. PO Kwon informed § 87(2)(b) that he nearly hit a pedestrian and requested his driver's license as he contemplated issuing him a summons. After § 87(2)(b) complied with the request, PO Kwon was approached by the food vendor who asked him not to give § 87(2)(b) a ticket. After speaking with the food vendor, PO Kwon decided not to issue § 87(2)(b) a summons and returned his driver's license, though he did not specifically remember how he did it. PO Kwon did not remember if he handed the license to § 87(2)(b) or if § 87(2)(b) ever refused to take the license from him. PO Kwon also did not remember if he tossed the license through an open window of § 87(2)(b)'s vehicle and if the license ever made contact with the vehicle's floor or the seat. PO Kwon did not remember using any profanity while

speaking to § 87(2)(b) and did not remember if he ever stated to § 87(2)(b) “Get the fuck out of here” (Board Review 03).

PO Sternberg stated that once he handed a summons to § 87(2)(b) § 87(2)(b) nearly hit a food vendor while reentering traffic. After § 87(2)(b) suddenly stopped to avoid colliding with the food vendor, PO Kwon approached the driver’s side of his vehicle and requested his license, which was provided without hesitation. PO Sternberg conversed with the food vendor near the sidewalk and was about four to five feet away from PO Kwon and § 87(2)(b). PO Sternberg did not observe PO Kwon toss § 87(2)(b)’s license through the open window of his vehicle and did not recall whether § 87(2)(b) was compliant with taking the license from PO Kwon. PO Sternberg described PO Kwon’s demeanor as calm and did not hear him tell § 87(2)(b) to “Get the fuck out of here” or use any other profanity (Board Review 04).

§ 87(2)(g)

It is therefore recommended that **Allegation A** and **Allegation B** be closed as **unsubstantiated**.

#### Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 05).
- PO Kwon has been a member of the service for four years. He has not been a subject of any prior allegations (Board Review 06).

#### Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of November 16, 2017, there was no Notice of Claim filed for this complaint (Board Review 08).

Squad No.: 7

Investigator: \_\_\_\_\_ FILIP WORONIECKI 01/16/2018  
Signature Print Title & Name Date

Squad Leader: \_\_\_\_\_ IM TOWNSEND \_\_\_\_\_  
Signature Print Title & Name Date

Reviewer: \_\_\_\_\_ \_\_\_\_\_  
Signature Print Title & Name Date